

22STCV02098 22STCV02098

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-08-26

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Case Number: 22STCV02098 Hearing Date: August 26, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 26, 2026

Case Name: Davidson v. Von Drachenberg, et al.

Case No.: 22STCV02098

Matter: Motion to Strike

Moving Party: Plaintiff Stephanie Davidson

Responding Party: Defendant Katherine Von Drachenberg

Notice: OK

Ruling: The Motion is granted.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is an action for wrongful termination and violations of the FEHA, UCL, and Labor Code.

On August 7, 2025, the Court granted the summary judgment motion of Defendant Katherine Von Drachenberg ("KVD").

On April 22, 2026, KVD filed a memorandum of costs.

Plaintiff Davidson now seeks to strike the entirety of the memorandum of costs.

Under Code of Civil Procedure section 1032(b), a prevailing party is entitled as a matter of right to recover costs except as otherwise expressly provided by statute. However, Government Code section 12965(c)(6) creates an express statutory exception for actions under the FEHA. Under FEHA, an unsuccessful plaintiff is not subject to costs unless the court makes a specific finding that the action was "frivolous, unreasonable, or groundless when brought, or the plaintiff continued to litigate after it clearly became so" (codifying *Williams v. Chino Valley Independent Fire District* (2015) 61 Cal.4th 97, 99–100).

Where FEHA's cost-shifting restriction applies, a prevailing defendant cannot simply file a standard MC-010 Memorandum of Costs with the clerk under California Rules of Court, rule 3.1700. Instead, the defendant must affirmatively move the court by noticed motion for a discretionary award supported by a showing of frivolousness (*Neeble-Diamond v. Hotel California By the Sea, LLC* (2024) 99 Cal.App.5th 551, 557–558; *Anthony v. City of Los Angeles* (2008) 166 Cal.App.4th 1011, 1015–1016). Filing a cost memorandum under section 1032 is an ineffective procedure in a FEHA action (*Neeble-Diamond*, supra, 99 Cal.App.5th at pp. 557–558).

KVD argues that because Plaintiff only asserted a single cause of action against her individually under Labor Code section 1102.5 (and no direct FEHA causes of action), section 1032 controls and section 12965 does not apply.

The Court disagrees. When a lawsuit involves both FEHA and non-FEHA claims—or FEHA defendants and non-FEHA individual defendants—arising out of the exact same factual nucleus, and the defense costs are intertwined and inseparable, the protective rule of FEHA controls (*Roman v. BRE Properties, Inc.* (2015) 237 Cal.App.4th 1040, 1059–1062; see also *Moreno v. Bassi* (2021) 65 Cal.App.5th 244).

Here, Plaintiff's claims against KVD (the sole owner/CEO) and High Voltage Tattoo, Inc. ("HVT") stem from identical factual allegations regarding working conditions, COVID-19 compliance complaints, and Plaintiff's termination. KVD's defense was conducted jointly with HVT by shared counsel.

KVD's Memorandum of Costs seeks \$13,513.24 for shared defense expenses—including court filing fees, the full transcript and videotape of Plaintiff's deposition, third-party subpoena service, and general trial exhibit preparation—incurred while HVT was actively defending FEHA claims. KVD has made no showing or attempt to segregate costs exclusively attributable to defending the Labor Code § 1102.5 claim from the broader defense of HVT on the FEHA claims. Permitting KVD to claim all joint litigation costs via a clerk's memorandum while HVT remains an active defendant on non-frivolous FEHA claims would create an improper end-run around Government Code section 12965(c)(6) (*Fennessy v. Deleuw-Cather Corp.* (2020) 218 Cal.App.3d 1192, 1196–1197; *Roman*, supra, 237 Cal.App.4th at p. 1062).

Therefore, the Motion to Strike is granted.

Moving party to give notice.